

IN THE SENATE

SENATE CONCURRENT RESOLUTION NO. 120

BY STATE AFFAIRS COMMITTEE

A CONCURRENT RESOLUTION

STATING FINDINGS OF THE LEGISLATURE AND ENCOURAGING THE ADVANCEMENT OF USED NUCLEAR FUEL REPROCESSING CAPABILITIES IN IDAHO, AFFIRMING ITS COMMITMENT TO THE 1995 SETTLEMENT AGREEMENT, AND REQUESTING RENEGOTIATION AND MODIFICATION THEREOF WHERE NECESSARY.

Be It Resolved by the Legislature of the State of Idaho:

WHEREAS, on May 23, 2025, President Trump issued four executive orders to revitalize the United States' nuclear energy industry and to support national security and economic growth: Executive Order No. 14299, "Deploying Advanced Nuclear Reactor Technologies for National Security"; Executive Order No. 14300, "Ordering the Reform of the Nuclear Regulatory Commission"; Executive Order No. 14301, "Reforming Nuclear Reactor Testing at the Department of Energy"; and, of particular relevance to this resolution, Executive Order No. 14302, "Reinvigorating the Nuclear Industrial Base"; and

WHEREAS, Executive Order No. 14302 directs relevant agencies to recommend a national policy that supports the management of spent nuclear fuel, also referred to as used nuclear fuel (UNF), and high-level waste and the development and deployment of advanced fuel cycle capabilities so that a safe, secure, and sustainable long-term fuel cycle can be established, and to evaluate the reprocessing, also referred to as recycling, of UNF from the U.S. Department of War and U.S. Department of Energy (DOE) operations and describe the steps such federal departments are taking, or must take, to improve such reprocessing processes; and

WHEREAS, the United States continues to face critical challenges in managing UNF for commercial, research, and national security reactors; and

WHEREAS, Idaho is uniquely positioned to be the nation's premier destination for UNF reprocessing facilities, a status anchored by its existing legal framework, unparalleled existing infrastructure, and a highly specialized legacy workforce due to Idaho being home to the Idaho National Laboratory (INL); and

WHEREAS, INL is a strategic national asset that houses world-class facilities for post-irradiation examination, fuel development, and advanced fuel cycle research and development and is where the original technology for reprocessing was developed and where UNF and high-level waste from commercial, research, and national security reactors are currently, but only temporarily, stored; and

WHEREAS, INL has produced a specialized, multi-generational workforce that has honed its expertise through several decades of continuous fuel reprocessing operations and waste management at the INL site, thereby creating an embedded knowledge base that ensures operational excellence and safety that would be nearly impossible to replicate elsewhere; and

WHEREAS, the strong partnerships between INL and Idaho's universities and community colleges ensures a robust talent pipeline for future needs and

1 includes training for nuclear technicians, operators, and maintenance work-
2 ers; and

3 WHEREAS, INL is at the forefront of nuclear innovation, with active re-
4 search and development in aqueous and pyrochemical separation technologies,
5 advanced reactor fuel cycles, and high-assay low-enriched uranium produc-
6 tion, thereby solidifying Idaho's capacity for future, cutting-edge repro-
7 cessing efforts; and

8 WHEREAS, Idaho's legal framework supports the development of nuclear
9 technologies with statutes such as section 39-3027, Idaho Code, which pro-
10 hibits the enactment of laws banning the use of nuclear energy for electric-
11 ity generation unless submitted to the electorate at the next earliest gen-
12 eral election; and

13 WHEREAS, INL has a strong regulatory framework for radiation protec-
14 tion, as evidenced by 10 CFR 835, Occupational Radiation Protection, which,
15 among other things, requires compliance with public dose limits consistent
16 with federal regulation; and

17 WHEREAS, in 1995, the State of Idaho, through the Governor and Attorney
18 General, entered into a settlement agreement (1995 settlement agreement)
19 with the DOE and U.S. Department of the Navy, which established maximum
20 amounts of UNF and other specified nuclear wastes allowed into Idaho for
21 treatment at INL and packaging into road-ready containers for more secure
22 storage and eventual shipment out of Idaho; and

23 WHEREAS, the 1995 settlement agreement designates INL as the DOE's lead
24 spent fuel laboratory for UNF; and

25 WHEREAS, on January 14, 2026, the DOE's Office of Nuclear Energy an-
26 nounced the establishment of the Center for Used Fuel Research (Center)
27 at INL that will coordinate a broad and diverse collaboration through a
28 "hub-and-spoke" network that will encompass other national laboratories
29 within the DOE complex, leading universities, and key industry partners
30 across the United States, and will extend its support to and actively col-
31 laborate with international partners, thereby officially designating INL
32 as the DOE's leading institution for critical research, development, and
33 demonstration efforts concerning management of UNF, which are separate and
34 distinct from INL's critical work under the 1995 settlement agreement; and

35 WHEREAS, the DOE's announcement and establishment of the Center rein-
36 force and highlight a key aspect of the 1995 settlement agreement by reaf-
37 firming INL as the lead spent fuel laboratory for the DOE; and

38 WHEREAS, the 1995 settlement agreement defines "treat," as that term
39 applies to UNF or high-level waste, as "any method, technique, or process
40 designed to change the physical or chemical character of the waste or [spent]
41 fuel to render it less hazardous; safer to transport, store, dispose of; or
42 reduce in volume"; and

43 WHEREAS, the 1995 settlement agreement requires the DOE to "treat" max-
44 imum quantities of specified UNF, high-level waste, and transuranic wastes
45 in Idaho so that the same can be permanently disposed outside of Idaho; and

46 WHEREAS, in April 2024, the State of Idaho and the DOE reached a tar-
47 geted waiver of certain provisions of the 1995 settlement agreement to
48 permit shipments of high burn-up UNF to INL for research purposes, thereby
49 demonstrating Idaho's commitment to advance reprocessing science and enable
50 cutting-edge nuclear research; and

1 WHEREAS, modern reprocessing technologies offer the potential to re-
2 cover valuable fissile and fertile materials, reduce high-level waste vol-
3 umes with more secure, permanent storage of ultimate by-products, and pro-
4 duce reactor-ready fuel to support both national energy security and eco-
5 nomic growth; and

6 WHEREAS, continued development of reprocessing and advancing nuclear
7 fuel cycles in Idaho would create high-paying science and engineering jobs
8 and other attractive career opportunities, support INL's and DOE's mission
9 and the federal policies advancing nuclear energy announced by President
10 Trump's four executive orders, and contribute to national energy indepen-
11 dence and economic prosperity.

12 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Ses-
13 sion of the Sixty-eighth Idaho Legislature, the Senate and the House of Rep-
14 resentatives concurring therein, that the Legislature strongly encourages:

15 (1) Expanding reprocessing research, demonstration, and deployment
16 activities at INL and related commercialization with the goal of convert-
17 ing UNF into reactor-ready fuel for reuse across the country and around the
18 world;

19 (2) Collaboration between state agencies, the Governor of Idaho, the
20 Attorney General of Idaho, INL, DOE, private industry, and academic institu-
21 tions to identify and support pilot-scale and industrial-scale reprocessing
22 initiatives;

23 (3) Proactive engagement with local communities, tribal governments,
24 and other stakeholders to ensure transparency, environmental protection,
25 and public trust in any reprocessing proposal; and

26 (4) Alignment of research and deployment efforts with Idaho's law and
27 with federal safety, security, and nonproliferation standards.

28 BE IT FURTHER RESOLVED that the Legislature declares that, in its judg-
29 ment, reprocessing of UNF is not inherently in conflict with the 1995 settle-
30 ment agreement's terms because:

31 (1) The recovered material would be converted into reactor-ready fuel,
32 not simply stored temporarily or permanently in Idaho;

33 (2) The chemical and physical transformation envisaged by modern re-
34 processing is within the scope of the 1995 settlement agreement's definition
35 of "treat"; and

36 (3) Such activity furthers the objectives of responsible nuclear man-
37 agement and leverages Idaho's capabilities for the good of the nation.

38 BE IT FURTHER RESOLVED that the Legislature maintains that any leftover
39 high-level waste and other UNF waste by-product from reprocessing shall re-
40 main subject to handling and disposal in accordance with applicable federal
41 and state laws and regulations and the 1995 settlement agreement's terms and
42 conditions, as may be renegotiated or modified.

43 BE IT FURTHER RESOLVED that if the 1995 settlement agreement is de-
44 termined to restrict reprocessing activity by INL or shipments of UNF into
45 Idaho for temporary storage and reprocessing, the Legislature urges Idaho's
46 Governor and Idaho's Attorney General to renegotiate and modify the 1995
47 settlement agreement to modify such restrictions in exchange for payment of
48 significant financial consideration to Idaho and perpetual assurance that
49 human safety, environmental protection, and regulatory rigor are preserved.

1 BE IT FURTHER RESOLVED that the Legislature directs relevant state
2 agencies and requests Idaho's congressional delegation to advocate for
3 federal support, such as DOE programs, funding, or regulatory reform, to ad-
4 vance reprocessing and fuel-cycle research consistent with this Resolution.

5 BE IT FURTHER RESOLVED that the Legislature requests Idaho's Governor
6 and Idaho's Attorney General to report to the Legislature in the 2027 leg-
7 islative session on progress made pursuant to this Resolution, including
8 steps taken to negotiate federal commitments of significant compensation
9 to Idaho, such that the Governor and the Attorney General may consider mod-
10 ifying the 1995 settlement agreement to allow additional UNF or high-level
11 waste into Idaho, if any, and to further support INL in developing research
12 programs, and engage private industry and other stakeholders.

13 BE IT FURTHER RESOLVED that the Secretary of the Senate be, and is hereby
14 authorized and directed to forward a copy of this Resolution to the congres-
15 sional delegation representing the State of Idaho in the Congress of the
16 United States, the Secretary of the U.S. Department of Energy, the Governor
17 of Idaho, the Attorney General of Idaho, and Idaho National Laboratory lead-
18 ership.